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ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
10/16/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

THE PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff / Respondent, vs. **ANDREW ENRIQUEZ,** Defendant / Appellant.	Appellate Case No. 24-008800 Superior Court No. 22014337 **FIRST REQUEST FOR EXTENSION OF TIME TO FILE RESPONDENT'S BRIEF**

The People of the State of California hereby move for a first extension of time to file Respondent's Brief in the above-entitled appeal, which is due on October 18, 2024, to November 15, 2024, based upon the attached declaration.

Dated: October 16, 2024

Respectfully submitted,
BROOKE JENKINS
District Attorney

Kathleen McBride

KATHLEEN MCBRIDE
Assistant District Attorney

DECLARATION OF KATHLEEN MCBRIDE

I, Kathleen McBride, hereby declare:

1. I, the undersigned, am an attorney representing Respondent, the People of the State of California, and hereby move for an extension of time to file Respondent's Brief to Friday, November 15, 2024.

2. The Clerk's Transcript consists of approximately 319 pages and the Reporter's Transcript consists of approximately 523 pages.

4. This Court granted Appellant's first request for an extension of time to file the Opening Brief on July 9, 2024.

5. This Court granted Appellant's second request for an extension of time to file the Opening Brief on July 19, 2024.

6. Appellant filed the Opening Brief on September 18, 2024. I was assigned to represent Respondent the following day.

7. This Court granted Appellant's application to file a supplemental opening brief on October 14, 2024. That brief was electronically filed on October 10, 2024.

7. In addition to being assigned to represent Respondent in this matter, I have been assigned to primarily author or assist in the following matters with corresponding due dates:

- Informal Opposition to Petition for Writ of Mandate in *People v. Joseph Corey Bazley*, San Francisco Superior Court Nos. 20007306 and 21010487. The defendant faces charges for, *inter alia*, possession or control of child pornography (Pen. Code, § 311.11, subd. (a)), contempt of court (Pen. Code, § 166, subd. (a)(4), contact with minor for sexual offense (Pen. Code, § 288.3, subd. (a), sending harmful matter to a minor (Pen. Code, § 288.2, subd. (a)(2)), arranging a meeting with a minor for lewd purposes (Pen. Code, § 288.4, subd. (a)(1)), sexual penetration of minor by foreign object (Pen. Code, § 289, subd. (h)), and sodomy of person under 18 (Pen.

Code, § 286, subd. (b)(1)).

- Opposition to Defendant's Motion for a Violation of the Racial Justice Act (Pen. Code, § 745) Post-Hearing Briefing in *People v. Demond Jamal Finley*, San Francisco Superior Court No. 22006989;
- Opposition to Defendant's Motion for Relevant Data Under the Racial Justice Act (Pen. Code, § 745, subd. (d)), in *People v. Salvador Rodriguez*, San Francisco Superior Court No. 23011545, where the defendant faces charges for, *inter alia*, attempted murder (Pen. Code, §§ 664/187, subd. (a)) with allegations of premeditation and deliberation, personal and intentional discharge of a firearm (Pen. Code, § 12022.53, subd. (d)) and street terrorism (Pen. Code, § 186.22, subd. (b)(1)(A)); assault with a semiautomatic firearm (Pen. Code, § 245, subd. (b)) with allegations of firearm use (Pen. Code, § 12022.5, subd. (a)) and great bodily injury (Pen. Code, § 12022.7, subd. (a)); discharge of a firearm with gross negligence (Pen. Code, § 246.3, subd. (a)) with an allegation of personal use of a firearm (Pen. Code, § 1192.7, subd. (c)(8)); carrying a loaded firearm – not registered owner (Pen. Code, § 25850, subd. (a)); and carrying a concealed firearm – not registered owner (Pen. Code, § 25400, subd. (a)(2)).

8. I was out of the office on a prescheduled, preapproved vacation from October 2, 2024 through October 9, 2024.

9. I have begun my initial review of the appeal; however, I believe additional time is needed to complete the Respondent's Brief.

10. There have been no additional requests for an extension of time by Respondent.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, based upon my personal knowledge, except to those items stated on information and belief and as to those items, I believe them to be true.

Executed at San Francisco, California on October 16, 2024.

Kathleen McBride

Kathleen McBride

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

THE PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff / Respondent, vs. **ANDREW ENRIQUEZ,** Defendant / Appellant.	Appellate Case No. 24-008800 Superior Court No. 22014337

[PROPOSED] ORDER

IT IS HEREBY ORDERED that the time to file Respondent's Brief be extended to _____.

Date:

_____
Hon. Stephen Murphy
Presiding Judge
Appellate Division

DECLARATION OF SERVICE

I, Kathleen McBride, state:

That I am a citizen of the United States, over eighteen years of age, an employee of the City and County of San Francisco, and not a party to the within action; that my business address is 350 Rhode Island Street, North Building, Suite 400N, San Francisco, California 94103. I am familiar with the business practice at the San Francisco District Attorney's Office (SFDA) for collecting and processing electronic and physical correspondence. In accordance with that practice, correspondence placed in the internal mail collection system at the SFDA is deposited in the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business. Correspondence that is submitted electronically is transmitted using the TrueFiling electronic system, FileAndServeXpress electronic system, or electronic mail. Participants who are registered with either TrueFiling or FileAndServeXpress will be served through electronic mail at the email addresses listed below. Participants who are not registered with either TrueFiling or FileAndServeXpress will receive hard copies through the mail via the United States Postal Service.

That on October 16, 2024, I electronically served the **REQUEST FOR EXTENSION OF TIME TO FILE RESPONDENT'S BRIEF; [PROPOSED] ORDER** by transmitting a true copy of through TrueFiling, FileAndServeXpress, or through electronic mail. Because one or more of the participants have not registered with the Court's system or are unable to receive electronic correspondence, on October 16, 2024, I placed a true copy thereof enclosed in a sealed envelope in the internal mail collection system at the San Francisco District Attorney's Office at 350 Rhode Island Street, North Building, Suite 400N, San Francisco, California 94103, addressed as follows:

Steve Lau
345 Franklin Street
San Francisco, CA, 94102
PDF via Email:
attorneystevelau@gmail.com

Oliver Kroll
Deputy Public Defender
555 7th Street
San Francisco, CA 94103
PDF via Email:
Oliver.a.kroll@sfgov.org;
pubdefdiscovery@sfgov.org

I declare under penalty of perjury that the foregoing is true and correct. Executed October 16, 2024, at San Francisco, California.

Kathleen McBride

Kathleen McBride